

a contract, which is specifically different from fraudulent performance of a contract. This was further affirmed in *Dhital v. Nissan North America*, supra, 84 Cal.App.5th 828, which determined that “[f]raudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court.” The facts of *Dhital* are approximate to the facts presented in this case, in which Plaintiff’s claimed they were fraudulently induced into entering a contract through Nissan’s fraudulent concealment of an alleged transmission defect. Here, Plaintiff claims that entry into the contract was fraudulently induced by Defendant’s concealment of an alleged transmission defect, which falls squarely within the exception to the economic loss rule. Defendant has failed to meet its initial burden. Summary Adjudication is **DENIED** as to Issue 5.

In summary, summary adjudication is **DENIED** as to Issues 2, 3, 4 and 5. Summary adjudication is **GRANTED** as to Issue 1. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant shall prepare the Order.

9:00 a.m. – Review Hearings

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. While a Motion to be Relieved was granted on April 27, 2026, Plaintiff’s counsel has not filed a Notice of Entry of Order and is therefore not relieved. Plaintiff’s counsel was ordered to provide notice of today’s hearing to all parties. There is nothing in the file to indicate that Plaintiff’s counsel did so. **An appearance is necessary on today’s calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of CCP § 664.6 dismissal. Plaintiff filed a status statement informing the Court that an agreement has been reached and a stipulation is being distributed to all parties for signature. Plaintiff requests 90 days to file the stipulation. This is essentially the same information provided the last time Plaintiff requested a continuance. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The parties are ordered to take the necessary steps to close the court file, i.e. a dismissal with a CCP § 664.6 retention. If the matter has not been dismissed prior to the next hearing, the Court orders Plaintiff to file a status statement explaining the delay at least five court days prior to the hearing. **No appearance is necessary on today’s calendar.**

EL RIO ESTATES LLC VS. JOHNSON-SARGENT, ET AL.

CASE NUMBER: 26CVG-00088

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code § 798.61. The clerk is directed to close the file. **No appearance is necessary on today’s calendar.**

KNIGHT VS. HIGHWAY SPECIALTY COMPANY INC

CASE NUMBER: 24CV-0206254

This matter is on calendar for status of arbitration. Plaintiff previously informed the Court that Plaintiff intends to file a demand for arbitration. At the last hearing on April 27, 2026, both parties were ordered to file a status statement at least five days prior to today’s hearing. Nothing has been filed since the last hearing. **An appearance is necessary on today’s calendar.**

LINDLER, ET AL. VS. THOMPSON, ET AL.

CASE NUMBER: 23CV-0203385

This matter is on calendar for review regarding status of dismissal. At the last hearing on February 23, 2026, the Court issued a tentative ruling explaining that the court does not have the staffing to monitor the case until 2030 to ensure closure of the court file and also noting that a dismissal in 2030 would be past the five-year deadline to bring the matter to trial. The parties were ordered to either submit a stipulation and order for a dismissal pursuant to CCP § 664.6 or file a Request for Dismissal prior to today's hearing. Nothing has been filed since the last hearing. **An appearance is necessary on today's calendar.**

LIU, ET AL. VS. MONTES, ET AL.

CASE NUMBER: 24CV-0205512

This matter is on calendar for review regarding status of dismissal. Plaintiffs filed a status statement providing the Court with the explanation for the delay. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of dismissal. If the matter is not dismissed by the next hearing, Plaintiffs are ordered to file a status statement with an update regarding the liens no less than five court days prior to the next hearing. **No appearance is necessary on today's calendar.**

RHYNE VS. SASD REDDING PARTNERS, LLC

CASE NUMBER: 24CVG-00955

This matter is on calendar for review regarding status of judgment/dismissal. A Conditional Notice of Settlement was filed on November 25, 2025 which indicates that the case would be dismissed no later than January 31, 2026. This is the fourth review hearing since the Notice of Settlement was filed. At the last hearing on May 4, 2026, Plaintiff was ordered to file a status statement no less than five court days prior to today's hearing. A status statement has not been filed. **An appearance is necessary on today's calendar. Absent good cause being presented, the Court intends to dismiss the matter without prejudice pursuant to CRC 3.1385(c)(2).**

SAFECO INSURANCE COMPANY OF AMERICA VS. WINTERS, ET AL.

CASE NUMBER: 25CV-0208237

This matter is on calendar for review regarding status of responsive pleading. The Court notes that Defendant Gregory Winters, Individually and a Trustee of the Slavich Christie Marie Special Needs Trust filed an Answer on April 15, 2026. Defendant Christie Marie Slavich has not been served and has not appeared. **An appearance is necessary on today's calendar.**

WILKINSON VS. WILKINSON, ET AL.

CASE NUMBER: 23CV-0202523

This matter is on calendar for review regarding status of the probate matter. Defendant/Cross-Complainant filed a status statement informing the Court that letters have issued in the probate case in Humboldt County. Despite being ordered to do so, Cross-Defendant Teresa Malcolm did not file a status report. **An appearance is necessary on today's calendar.**